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THE STATE CASE continued through the Christmas season of 1963, ending on February 29, 1964. We had a little over a month to examine the evidence and prepare our defense. We were not all equally affected by the evidence. There was no evidence against James Kantor; he was not even a member of our organization and should not have been on trial at all. For Rusty Bernstein, Raymond Mhlaba, and Ahmed Kathrada, the evidence of involvement in conspiracy was slight and we decided they should not incriminate themselves. In Rusty's case, the evidence was negligible; he had merely been found at Rivonia with the others. The remaining six of us would make admissions of guilt on certain charges.

Bram was deeply pessimistic. He avowed that even if we proved that guerrilla war had not been approved and our policy of sabotage was designed not to sacrifice human life, the state could still impose the death sentence. The defense team was divided on whether or not we should testify. Some asserted that it would hurt our case if we testified. George Bizos, though, suggested that unless we gave evidence and convinced the judge that we had not decided on guerrilla warfare, he would certainly impose the supreme penalty.

Right from the start we had made it clear that we intended to use the trial not as a test of the law but as a platform for our beliefs. We would not deny, for example, that we had been responsible for acts of sabotage. We would not deny that a group of us had turned away from nonviolence. We were not concerned with getting off or lessening our punishment, but with having the trial strengthen the cause for which we were all struggling — at whatever cost to ourselves. We would not defend ourselves in a legal sense so much as in a moral sense. We saw the trial as a continuation of the struggle by other means. We would readily admit what was known by the state to be true but refuse to give away any information we thought might implicate others.

We would dispute the state's central contention that we had embarked on guerrilla warfare. We would admit that we had made contingency plans to undertake guerrilla warfare in the event sabotage failed. But we would